

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](http://uis.unesco.org)

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: **Republic of South Africa**

Organization or entity responsible for the preparation of the report: **The Department of Basic Education**

Name of contact person: **Dr S Taylor**

Email and telephone number of contact person: 012 357 4156

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☒ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☒ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

South Africa has signed but not ratified the Convention.

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☒ Yes ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☐ No

¹⁰ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☐ Yes:

Have the provisions of the Convention been invoked?

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

The Constitutional Court protects the Bill of Rights in the Constitution, which guarantees the right to education.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

*It further corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☐ Yes ☐ No

- If yes, please provide reference:

National laws are well aligned.

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

¹³ See: Article/Paragraph 1(1).

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☐ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

- ☐ In pre-primary education (including early learning and care)
- ☐ In primary education
- ☐ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please indicate the relevant legal provisions:

The Bill of Rights as contained in the Constitution of the Republic of South Africa, Act 108 of 1996 for all levels and phases of education

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

The prohibited grounds include race, gender, sex, pregnancy, ethnic or social origin, colour, sexual orientation, age, disability, religion, conscience, belief, culture, language and birth. It is important to note that the Act does not prohibit discrimination but unfair discrimination. There are certain circumstances where discrimination can be regarded as fair e.g. measures designed to advance persons disadvantaged by the previous system of racial discrimination.

☐ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ☐ In pre-primary education (including early learning and care)
- ☐ In primary education
- ☐ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please provide details:

¹⁴ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

Education White Paper 6 on Special Needs Education: Building an Inclusive Education and Training System

Care and Support for Teaching and Learning (CSTL) operational framework

Values in Action: A Manual in Constitutional Values and School Governance for School Governing Bodies and Representative Councils of Learners

National Action Plan to Combat Racism, Xenophobia, Discrimination and Related Intolerances

Dealing with Homophobic Bullying in Schools

Gender Responsive Pedagogy for Early Childhood Education

Teaching for All: a training programme for teachers in skills, attitudes and knowledge to teach inclusively in diverse classrooms in diverse communities

☐ **Combatting discrimination in terms of curriculum:**

☐ In pre-primary education (including early learning and care)

☐ In primary education

☐ In secondary education

☐ In technical and vocational education and training

☐ In higher education

☐ In adult education and alternative learning

- Please provide details:

The learning area of Life Orientation and Lifeskills from Grade 1 to 12 delivers in class the graded, scientific, age appropriate and culturally relevant content to combat discrimination

☐ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

The Department of Basic Education has resolved to develop sector guidance by developing a Protocol for the Management and Reporting of Unfair Discrimination in Schools. This Protocol is still in draft form and awaits endorsement and approval by the Council of Education Ministers.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- ☐ Legislation provides for inclusive education for all
- ☐ Policy measures aim to enhance inclusion in education for all
- ☐ Teachers are trained on inclusive education¹⁶ and to value diversity
- ☐ Initiatives to address discrimination and promote cultural diversity and mutual acceptance
- ☐ Other:
- ☐ Multiple and flexible learning pathways¹⁷ are provided for
- ☐ Curricula and teaching methods are inclusive in design¹⁸
- ☐ Multilingual and intercultural education is supported

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- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

Although the constitution and legislative frameworks in education are clear, there seems to be no consensus in what constitutes discrimination in schools. As such, the Department of Basic Education is often challenged by education stakeholders when making strategic moves to ensure that we provide a constitutional, discrimination-free and human-rights-compliant education – especially the religious fraternity.

Other relevant general measures, including gender equality

- ☐ Legislation provides for gender equality in education
- ☐ Policy measures aim to enhance gender equality
- ☐ Gender-responsive education sector planning is undertaken
- ☐ Providing positive or affirmative action measures
- ☐ Providing financial incentives and fellowships
- ☐ Teachers are trained (initial and in-service) on gender equality
- ☐ Teachers are trained to combat stigmatisation¹⁹
- ☐ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education
- ☐ Re-entry programmes for young mothers are provided for
- ☐ Ensuring safe and adequate gender-sensitive sanitation facilities²⁰
- ☐ Curricula are rid of all stereotypes²¹ and bias
- ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM)
- ☐ Ensuring gender parity in technical and vocational training education and training (TVET)
- ☐ Other:

The DBE Policy for the Prevention and Management of Learner Pregnancy in Schools emphasises the need to prevent early unintended pregnancy through Comprehensive Sexuality Education and access to Sexual and Reproductive Health and Rights (SRHR) Services. It also emphasises the need to support girls who happen to fall pregnant so that they do not miss tuition. It also places a strong recommendation for a return-to-school campaign for girls as soon as possible after giving birth to avoid a second early unintended pregnancy.

The DBE also subscribes to the Global Fund Adolescent Girls and Young Women (AGYW) Programme, which aims to prevent HIV infection, early unintended pregnancy and school-related gender-based violence. In order to make the programme more gender sensitive, the name has since been changed to Adolescents and Young People (AYP) Programme, for the inclusion of young men and boys as well as children with diverse sexual and gender identities.

ECD Practitioners and Foundation Phase Educators are trained on the Gender Responsive Pedagogy for Early Childhood Education (GRP4ECE).

¹⁹ ‘ Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them’ (Cambridge Dictionary).

²⁰ ‘ Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal’ ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong’ (Cambridge Dictionary).

Teaching for All aims to provide training programme for teachers to develop their skills, attitudes and knowledge to teach inclusively in diverse classrooms in diverse communities

The TechnoGirl programme has been implemented with the TechnoGirl Trust to ensure access to STEM subjects and careers for girls. More recently, the DBE also added an initiative called Girls Who Code, to ensure that girls participate fully in the Coding and Robotics curriculum reform.

Since the Ministerial Task Team to evaluate textbooks and other forms of Learning and Teaching Support Materials (LTSM) for racism, sexism, prejudice and other forms of discrimination concluded its work, an engagement with publishers was held towards a textbook policy that promotes diversity.

The Draft Guidelines for the Socio-educational Inclusion of Diverse Sexual Orientation, Gender Identity, Expression and Sex Characteristics (SOGIESC) in Schools awaits endorsement and approval by the Council of Education Ministers.

With UNICEF, the DBE has continued to implement the Girls and Boys Education Movement (GBEM) in secondary schools.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

The Religious and Traditional sectors are fighting for the preservation of patriarchy and cisgender heteronormative views and the efforts made towards gender equality are misconceived as some sort of ideology.

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

In terms of the Marriage Act (1961) Both persons to the marriage must give consent to get married and must be older than 18 years of age.

A person younger than 18 years of age, needs the permission of his/her parent/s or guardian/s to get married. Girls can enter into religious marriage from the age of 15 with parental consent but boys MUST be 18.

In terms of the Civil Union Act, 2006 (Act No. 17 of 2006) no person younger than 18 years of age can enter into a civil union though.

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
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| ☐ Legislation provides for the right to education of national minorities | ☐ Teachers are trained on intercultural education |
| ☐ Policy measures aim to enhance the right to education of national minorities | ☐ Teachers are trained to combat stigmatisation ²⁴ |
| ☐ Policy elaboration includes consultations with local communities | ☐ Multilingual and intercultural education are supported |
| ☐ The right to carry out their own educational activities is legally guaranteed for national minorities | ☐ Native language instruction is ensured for national minorities |
| ☐ Educational standards are established for educational institutions run by national minorities | ☐ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☐ Positive or affirmative action measures are provided for national minorities | ☐ Curricula are rid of all stereotypes ²⁵ and bias |
| ☐ Financial incentives and fellowships are provided for national minorities | |
| ☐ Other ²³ : | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Facilitating mother-tongue based language of instruction in all languages especially beyond the first three grades of schooling still needs developmental work, which is being embarked on by government.

Indigenous people:

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|--|--|
| ☐ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☐ Native language instruction is ensured |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| ☐ Other: | ☐ Curricula are rid of all stereotypes ²⁷ and bias |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

The legacy of apartheid is still being redressed.

²⁶ Supra note 15.
²⁷ Supra note 16.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

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|--|---|
| ☒ Legislation provides for their right to education | ☐ Financial incentives and fellowships are provided for |
| ☒ Policy measures aim to enhance their right to education | ☐ Auxiliary assistance is provided |
| ☒ Inclusion in mainstream schools is ensured | ☐ Multiple and flexible learning pathways ³¹ are provided |
| ☐ Positive or affirmative action measures are provided for | ☐ Curricula are rid of all stereotypes ³² and bias |
| ☐ All administrative barriers to access education are removed | ☐ Accelerated learning programmes are provided |
| ☐ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers ²⁹ are provided for | ☐ Non-formal and/or alternative education programmes are provided |
| ☐ Teachers are specifically trained to ensure their inclusion | ☐ Language classes to newcomers are provided for |
| ☐ Teachers are trained to combat stigmatisation ³⁰ | ☐ Multilingualism and intercultural education are encouraged |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☒ No

- Please elaborate:

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

³¹ Supra note 13.

³² Supra note 16.

People with disabilities:

- | | |
|--|---|
| ☐ Legislation provides for their right to education | ☐ Mainstream teachers are specifically trained on disabilities |
| ☐ Policy measures aim to enhance their right to education | ☐ Teachers are trained to combat stigmatisation ³³ |
| ☐ Inclusion in mainstream schools is ensured | ☐ Auxiliary assistance is provided |
| ☐ Special schools are used as resource centers to inclusive schools | ☐ Curricula and teaching and learning methods are adapted |
| ☐ Positive or affirmative action measures are provided | ☐ Curricula are rid of all stereotypes ³⁴ and bias |
| ☐ Financial incentives and fellowships are provided | ☐ Education infrastructure and learning materials are adapted |
| ☐ Other | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Students from poor households:

- | | |
|--|--|
| ☐ Financial incentives and fellowships for school enrolment are provided | ☐ Teachers are trained to combat stigmatisation ³⁵ |
| ☐ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education | ☐ Curricula are rid of all stereotypes ³⁶ and bias |
| ☐ Positive or affirmative action measures are provided | |

³³ Supra note 15.

³⁴ Supra note 16.

³⁵ Supra note 15.

³⁶ Supra note 16.

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- The DBE has a mandate to implement the **National School Nutrition Programme (NSNP)** which is funded by the National Treasury through a Conditional Grant as per the Division of Revenue Act (DoRA).

The sector has developed a **Psychosocial Support (PSS)** Guide for Schools. This is aimed at assisting schools to create psychosocially friendly environment, identify learners with psychosocial support needs for support.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

- **NSNP:** The impact of global economic pressures such as escalating food prices (inflation), fuel cost with the impact on the quality of meals due to non-compliance by some contracted suppliers. Currently, the programme benefits over 9 million learners in 21 000 public schools nation-wide.

PSS: Limited number of Social Services Professionals hired in the sector due to budgetary constraints.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked):

☐ Prior to pre-primary education, ECCE services are free

☐ ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play.

³⁷ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.
³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

- ☐ Prior to pre-primary education, ECCE services are affordable
- ☐ ECCE services are accessible on a non-discriminatory basis

- Please elaborate further on the measures taken:

Currently, ECCE services prior to pre-primary education is neither universally accessible nor affordable in South Africa. However, the Department of Education has developed a 2030 Strategy for ECD programmes as a roadmap to ensure universally accessible ECCE services that is sufficiently funded and resourced. The Strategy recognises the need for a comprehensive package of services to children to enable holistic development.

- Is compulsory and free of charge pre-primary education available?

- ☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

Currently, compulsory school age is 7 – 15 years old and does not include pre-primary education.

South Africa has just passed legislation that will make one year of pre-primary education compulsory. This will ensure that children aged 5, turning 6 by 30 June will be required to attend Grade R (1 year pre-primary).

- ☐ Pre-primary education is **not** compulsory.
- ☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

According to newly passed legislation, Grade R (1 year pre-primary) will become free of charge for the poor in South Africa, but private providers of pre-primary education before Grade R is not free.

- ☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

According to newly passed legislation, Grade R (1 year pre-primary) will become free of charge for the poor in South Africa.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|---|---|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low number of professionally trained educators |

☐ Poor quality programmes

☐ Lack of support to families

☐ Other:

All of the above

- Please elaborate. Brief quantitative information may be added.

The situation of the young children's access to ECD programmes:

- There are nearly 7 million children aged 0-5 years old in South Africa.
- Children in this age group are disproportionately concentrated in low-income households. Nearly two-thirds of 0-5 year-olds (4.5 million children) live in the poorest 40% of homes.
- Children in this age group are unevenly distributed across provinces. About 3 million 0-5-year-olds live in just two provinces – Gauteng and KwaZulu-Natal.
- Many young children live in rural areas. Nearly half of all 0-5 year-olds live in areas classified as rural or with poor infrastructure, while over 1 million live in 'Poorest deep rural' areas.

About 2.2 million 0-5 year-olds attend an early learning programme such as a creche, nursery, pre-school, playgroup or day mother. A further 750,000 children in this age group attend Grade R or Grade 1. This means that 1.3 million 3-5-year-olds who would most benefit from access to structured early learning opportunities are not currently attending an early learning programme. The gap is closely linked to income. 66% of children in Quintile 1 are not in early learning programmes compared to 36% of children in Quintile 5.

Data on access to other ECD programmes is incomplete. For example, in the 0-2 year-old age group, while 733,000 are attending an early learning programme, it is not known how many other children are reached by parent support programmes.

The 2021 Thrive by Five Index reported that 57% of children attending early learning programmes are not on track for cognitive and/or physical development and face barriers to realising their full potential. For early learning specifically, 54% of children were not able to do the learning tasks expected of children their age, with 28% of children falling far behind the expected standard – and poor children least likely to be on track.

The DBE's ECD Census 2021 provided valuable insights into early learning programmes.

- The ECD Census found 42,420 ELPs, but based on early learning programme attendance figures from the General Household Survey the likely actual number is probably closer to 66,000 ELPs.
- Nearly 40% of ELPs are run from residential premises with just 5% in state-owned venues.
- The average number of children enrolled in an early learning programme is 39 (33 for ELPs run in residential premises).

- Over half of ELPs are not registered.
- About 630,000 children receive the per-child ECD subsidy – but if target access figures were achieved about 2.3 million 0-5 year-olds should be receiving it.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

In South Africa, the age of enrolment for primary education typically starts at 7 years old. Primary education, known as the General Education and Training (GET) phase, spans from Grade 1 to Grade 7. Therefore, the duration of primary education in South Africa is seven years.

- Is primary education compulsory and free of charge?

☒ Primary education is compulsory

☐ Primary education is **not** compulsory.

☒ Primary education is free of charge.

☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

In South Africa, public primary education is generally free. The government aims to provide basic education without charge to ensure that all children have access to schooling. However, there may still be some costs involved, such as for uniforms, transportation, and school supplies. Additionally, some public schools, especially those in more affluent areas, might charge school fees, but there are provisions for parents to apply for fee exemptions or reductions based on their financial situation.

- What challenges were encountered in realizing primary education?

☐ Limited access

☐ Issues of equity and inclusion

☒ High dropout rates

☐ Poor learning outcomes in:

Foundation literacy

Numeracy

☐ Poor quality programmes

Social and emotional learning

☐ Other:

Others

☒ Disparity in learning outcomes

☐ Low number of professionally trained teachers

- Please elaborate. Brief quantitative information may be added.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

In South Africa, lower secondary education is part of the General Education and Training (GET) phase and includes Grades 8 and 9. Students typically enter lower secondary education at the age of 13 or 14, following the completion of primary education (Grades 1-7).

- Please provide the age of enrolment and duration of upper secondary education:

Upper secondary education is part of the Further Education and Training (FET) phase and includes Grades 10 to 12. Students typically enter upper secondary education at the age of 15 or 16, following the completion of lower secondary education (Grades 8 and 9).

- Is lower and upper secondary education compulsory and free of charge?

☒ Lower secondary education is compulsory.

☐ Lower secondary education is **not** compulsory.

☒ Lower secondary education is free of charge.

☐ Lower secondary education is **not** free of charge.

☐ Upper secondary education is compulsory.

☒ Upper secondary education is **not** compulsory.

☒ Upper secondary education is free of charge

☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies,

uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

While lower secondary education (up to Grade 9) is compulsory and generally free, upper secondary education (Grades 10 to 12) is not compulsory but is free in most schools.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☒ No ☐

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

Yes, in South Africa, the legal minimum age for employment is aligned with the end of compulsory education. The Basic Conditions of Employment Act stipulates that the minimum age for employment is 15 years old. This aligns with the end of compulsory education, which is up to the age of 15 or the completion of Grade 9, whichever comes first. This alignment ensures that children are not legally allowed to work full-time until they have completed their compulsory education. In South Africa, the alignment between the minimum age for employment and the end of compulsory education is governed by specific laws and provisions. Here are the relevant details:

Relevant Laws and Provisions

1. Basic Conditions of Employment Act (BCEA) No. 75 of 1997:

- **Section 43:** Prohibits the employment of children under the age of 15 and those under the age of 18 in work that is inappropriate for their age or that places them at risk.
- **Section 44:** Specifies conditions under which children aged 15 to 18 can work, ensuring their employment does not interfere with their education.

2. South African Schools Act (SASA) No. 84 of 1996:

- **Section 3:** States that schooling is compulsory for children from the age of 7 (Grade 1) until the age of 15 or the completion of Grade 9, whichever comes first.

Enforcement of Provisions

1. Department of Employment and Labour:

- The Department enforces the BCEA through inspections and investigations. Employers found in violation of child labor laws can face fines and legal action.
- Labour inspectors conduct regular and random checks on workplaces to ensure compliance with labor laws, including those concerning the employment of minors.

2. Department of Basic Education:

- Ensures compliance with the South African Schools Act. Schools are required to report attendance, and measures are in place to track and address absenteeism to ensure that children complete their compulsory education.
- Collaboration with social services and other government agencies to address barriers to education and ensure children remain in school until they complete the compulsory phase.

Enforcement Mechanisms

- **Inspections and Audits:** Regular inspections by labor inspectors ensure that employers comply with the legal minimum age requirements.
- **Penalties and Prosecutions:** Employers who violate child labor laws face penalties, including fines and potential prosecution.
- **Collaboration with Schools:** Schools work with social workers and other agencies to ensure that children remain in school until the end of compulsory education.

These provisions and enforcement mechanisms help to ensure that the legal minimum age for employment is aligned with the end of compulsory education, protecting children's rights to education and preventing child labour.

- What challenges were encountered in realizing secondary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☐ Higher education is free of charge
- ☐ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☐ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

- What challenges were encountered in realizing higher education?

- | | |
|---|---|
| ☐ Limited access | ☐ Low number of professionally trained professors |
| ☐ Issues of equity and inclusion | ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| ☐ Poor quality programmes | |
| ☐ Poor learning outcomes | |

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

☐ Other:

- Please elaborate. Brief quantitative information may be added.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):

☐ Provision of education for persons who have not received or completed the whole period of their primary education

☐ Provision of literacy programmes

☐ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)

☐ Provision of free of charge learning opportunities

☐ Provision of professional training including reskilling and upskilling programmes

☐ Recognition, validation and certification of non-formal and informal learning

☐ Provision of free of charge career guidance and counselling

☐ Lifelong learning entitlements including learning accounts, vouchers, etc.

☐ Other:

- Please elaborate further on the measures taken:

- What challenges were encountered in realizing adult learning and education?

☐ Limited access

☐ Issues of equity and inclusion

☐ Poor quality programmes

☐ Other:

☐ Limited funding

☐ Poor learning outcomes

☐ Low number of professionally trained educators

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

☐ State monitoring and inspections

☐ Health and sanitation

☐ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))

☐ Infrastructure

☐ Curriculum

☐ Student-teacher ratio

☐ School fees (if relevant)

☐ Other

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

- What challenges were encountered in realizing quality education?

☐ Non-supportive or inadequate learning environments

☐ Violence in schools

☐ Cost of education

☐ Conflicts or crises

☐ Other:

☐ Low quality educational infrastructure and materials

☐ Inadequate parental support to education

☐ Long distances to schools

- Please elaborate. Brief quantitative information may be added.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

☐ Teacher training is provided without discrimination.

☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).

☐ Initial training and continuous professional development are provided.

☐ Minimum standards and qualifications required for the teaching profession.

☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.

☐ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.

☐ Establishment of performance monitoring systems.

☐ Measures taken to increase women in leadership positions in education.

☐ Other:

- Please elaborate on each of the measures taken:

1. All 24 HEIs accept all students who choose education, therefore training is provided without discrimination.

2. When teachers' average salaries are compared to the Sub-Saharan Countries, South Africa pays its teachers well.

3. MRTEQ, ISPFTED and the 3 Year Plan is used to plan and direct Initial training as well Continuous Professional Development for teachers.

4. SACE has identified 10 minimum Teaching Standards for the teaching profession in SA.

5. The profession is promoted through the State bursaries, recognition, and appreciation via our TASP(NTA)- framework.

6. The EEA assist to regulate, manage and promote measures dealing with diversity, including to redress imbalances at different levels of education.

7. IQMS which collective agreement with Labour Unions is the instrument used to monitor performance and appraisal.

- What challenges were encountered in the education personnel?

☒ Shortages of teaching staff

☐ Lack of qualified, trained and motivated teaching staff

☐ Lack of training centres

☐ Other:

☐ Low quality educational infrastructure and materials

☒ High student – teacher ratio

- Please elaborate. Brief quantitative information may be added.

The sector needs extra 31 000 teachers to close the gap, and this is caused by the mismatch of qualifications relative to the demand and supply.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

☒ Curriculum includes human rights education.

⁴¹

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

☐ Educational and/or extracurricular activities are organized on human rights education.

☐ Other:

- Please elaborate on each of the measures taken:

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☐ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. Please specify:

☐ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:

☐ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. Please specify:

☐ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered:

☐ Registration

☐ State monitoring and inspections

☐ Qualifications of teachers

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

- ☐ Health and sanitation
- ☐ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ Infrastructure
- ☐ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees
- ☐ School closures
- ☐ Other

- Please elaborate:

- What challenges were encountered in non-state education provision?

- | | |
|---|---|
| ☐ Low quality educational infrastructure and materials | ☐ Issues in terms of equity and inclusion |
| ☐ Low number of professionally trained teachers | ☐ Weak government regulatory and monitoring capacity |
| ☐ High student – teacher ratio | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

- ☐ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

⁴⁴ Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

- ☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)
- ☐ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.
- ☒ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.
- ☐ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.
- ☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education
- ☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.
- ☐ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|--|---|
| ☐ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☒ Limited access to internet and/or electricity |
| ☒ Lack of equity and inclusion in digital learning solutions | ☒ Limited access to hardware (devices, chargers, etc.) |
| ☒ Inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☐ Difficulty in regulating the use of digital education solutions |
| | ☒ Difficulty in sustainably financing digital education solutions at national scale |

⁴⁵ Lack of internet connection, basic infrastructure or devices.

☐ Other:

- ☐ Lack of digital skills development for meaningful use of digital technology in teaching practice
- ☐ Disjointed or fragmented solutions that are not centrally systematized or regulated

- Please elaborate. Brief quantitative information may be added.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

☒ Monitoring results are made public. Please provide the link:

<https://www.education.gov.za/Resources/Reports.aspx>

☐ Monitoring processes are participatory, inclusive and regular.

☒ Sector-wide and multisector approach is adopted to education governance.

☒ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

☒ The decision-making process for the allocation of resources to education is transparent.

☒ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.

☒ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

Monitoring and Support: An integrated monitoring and support instrument has been developed. The data captured provides an update on the strength, opportunities and challenges the system might be facing. The findings are shared with critical stakeholders internally and externally. In some instances, some challenges would require immediate attention, a strategy for intervention is activated.

Sector-wide and multisector approach is adopted to education and governance. Some challenges in education are not within the mandate of education, but impact on the delivery of education for, example issues of drugs and substance abuse, learner pregnancies, violence and Gender Based Violence, undocumented learners etc. in addressing these challenges, the department has adopted a multisectoral and inclusive stakeholder approach. The strategic activities done thus far are:

Multisectoral implementation plan

Conducting of joint imbizos and campaigns

Multisectoral and inclusive stakeholder intervention strategy

Ongoing sharing of critical information

Development of comprehensive and all-inclusive reporting tool.

Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans. Education is such a complex phenomenon, the education needs are not static but dynamic. The complexity makes it difficult for government to allocate adequate funding for all project and programme in such event, business sector, Non- Governmental Organisation and other stakeholders would be drawn in to provide material and financial injection. The concept of making education a societal issue or social compact becomes more in this regard.

Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies. The management and governance of education has been centralised around communities. In the event of a crisis situation experienced, structures such as Quality Learning and Teaching Campaign (QLTC) are activated to respond to challenges emanating at the time and to also put alert systems in place to avoid future challenges or minimise the extend of damages.

- What challenges were encountered in terms of governance?

☐ Budgetary constraints

☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels

☐ Poor dialogue with teachers' trade unions

☐ Other:

☐ Absence of supportive/ inconsistent/obsolete legal and policy environment

☐ Lack or weakness of monitoring systems – including the lack of reliable data

- Please elaborate. Brief quantitative information may be added.

III. **Methods used to draw the attention of the various authorities in the country to the instruments**

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other: